SmartPost Privacy & Surveillance

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Abstract - This term paper examines how SmartPost-style package lockers that use cameras and networked access can unintentionally shift from theft deterrence into privacy-invasive surveillance for delivery personnel, visitors, and nearby public areas. Building on recent Canadian privacy regulator case studies (Cadillac Fairview, Clearview AI, and the Tim Hortons app), we use the EGBC Code of Ethics as a framework to identify which professional duties are most at risk and why. We then propose privacy-by-design safeguards which include technical controls and governance measures that reduce surveillance creep while still supporting legitimate security and safety goals.

Index Terms - SmartPost-style package lockers, access control and audit logging, consent and notice, privacy-by-design safeguards.

INTRODUCTION

Package theft and missed deliveries have accelerated interest in "smart" residential package receivers: lockers or drop-box systems that authenticate users through apps, log access events, and often record video of the delivery area. In a SmartPost-style design, the same features that increase convenience and security, continuous sensing, remote access, and cloud storage also create persistent records of people who may not be primary users of the system, including couriers, neighbours, visitors, and incidental passersby. This is ethically significant because it places networked surveillance capability into a shared or semi-public space, where meaningful notice and consent are harder to achieve and where secondary uses (analytics, identification, disclosure to third parties) can expand beyond the original theft-deterrence purpose.

Following the course requirements, this paper focuses on issues actively discussed within the last five years and grounds the analysis in at least three real cases. Specifically, we examine (1) consent and notice, (2) reasonable expectations of privacy, (3) data minimization and retention, (4) access control and audit logging, and (5) cybersecurity risks that can turn security features into privacy harms. We use Canadian privacy regulator findings—Cadillac Fairview, Clearview AI, and Tim Hortons—as concrete examples of how "security" and "analytics" features can become biometric or behavioural surveillance when purpose limitation, consent, retention, vendor controls, and transparency are not engineered end-to-end.

DESCRIPTION OF ETHICAL ISSUES & DISCUSSION

SmartPost-style systems combine cameras, network connectivity, and cloud storage in semi-public residential spaces. While intended for theft deterrence and delivery verification, these features introduce surveillance capabilities that affect individuals beyond the device owner. This section analyzes the primary ethical risks associated with such systems—consent limitations, contextual privacy boundaries, data minimization, access governance, and cybersecurity exposure—through the lens of Canadian privacy principles and the EGBC Code of Ethics. The objective is to identify where professional engineering obligations are most directly engaged before examining relevant regulator findings below, in sub-section VII.

I. Consent and Notice

Consent under PIPEDA and BC PIPA must be meaningful and appropriate to the sensitivity of the information collected. SmartPost-style systems complicate this requirement because cameras at residential entrances capture not only device owners but also delivery personnel, visitors, and incidental passersby who have no contractual relationship with the system. Posted signage may provide notice, but it does not create meaningful choice, particularly for couriers performing employment duties who cannot realistically refuse collection. The ethical gap arises when passive disclosure is treated as sufficient consent for persistent digital recording, cloud storage, or analytic processing.

This issue engages the EGBC Code of Ethics obligations to act with honesty and integrity and to hold paramount the welfare of the public. If system capabilities—such as metadata logging or automated classification—extend beyond what affected individuals reasonably infer from a visible camera, engineers must recognize that reliance on implied consent is inadequate. Where refusal is impractical, collection must be

constrained by design rather than justified by notice alone.

II. Reasonable Expectations of Privacy

Residential entrances and shared hallways occupy a contextual boundary between private and public spaces. While individuals approaching a home expect to be visible, they do not necessarily expect persistent recording, long-term retention, or analytic processing. SmartPost systems convert ephemeral observation into durable digital records that can reconstruct behavioural patterns when combined with timestamps and metadata. The ethical concern arises when technical capability expands beyond the contextual expectations associated with ordinary residential visibility.

Under the EGBC Code, engineers must hold paramount the public welfare and clearly present the consequences of professional decisions. Widespread deployment of persistent recording in semi-public residential spaces can normalize surveillance beyond its original security purpose. Engineers therefore bear responsibility to ensure that recording scope, retention, and analytic depth remain proportionate to delivery verification objectives rather than redefining baseline expectations of privacy.

III. Data Minimization and Retention

Privacy law requires that organizations collect only what is necessary for an identified purpose and retain it only as long as required. SmartPost systems typically aim to deter theft and verify delivery; however, continuous recording, high-resolution storage, and extended retention exceed what is strictly necessary for those purposes. Long retention periods transform evidentiary clips into historical behavioural archives and increase the risk of secondary use or breach. Derived data such as timestamps, access logs, and analytic classifications may persist even after raw footage is deleted, creating additional privacy exposure.

This engages EGBC duties related to public welfare and competent practice. Excessive collection and retention enlarge the cybersecurity attack surface and heighten foreseeable misuse risk. Engineers must treat minimization and enforced deletion as architectural requirements, not optional features, ensuring that the scope and duration of collection remain proportionate to the stated security objective.

IV. Access Control and Audit Logging

The ethical risk of SmartPost systems is not limited to data collection, but extends to who can access recorded information and under what conditions. Video footage and associated metadata may be accessible to homeowners, device manufacturers, cloud service providers, third-party analytics vendors, or law enforcement through disclosure requests. Without clearly defined role-based access controls and immutable audit logs, there is little accountability over how data is viewed, shared, or retained. A system that allows broad or poorly monitored access transforms a security feature into a distributed surveillance tool.

From an engineering standpoint, access control must be enforced technically rather than assumed contractually. Role-limited permissions, encryption with user-controlled keys, and tamper-resistant logging mechanisms are necessary to ensure that only authorized individuals access recorded material and that such access is traceable. Without audit logging, misuse may occur without detection, undermining both transparency and accountability.

These concerns engage the EGBC obligations to act with integrity and to safeguard the welfare of the public. Engineers are responsible for anticipating foreseeable misuse, including unauthorized vendor access, credential compromise, or inappropriate disclosure. A system that collects sensitive visual data without strict access governance exposes individuals to preventable harm and erodes public trust. Accordingly, SmartPost systems must treat access control and auditability as core architectural requirements rather than secondary administrative features.

V. Cybersecurity Risks as Privacy Harms

SmartPost systems rely on network connectivity, cloud storage, and remote access, making cybersecurity inseparable from privacy protection. Weak authentication, unencrypted video streams, insecure cloud configurations, or compromised firmware updates can expose live or archived footage to unauthorized parties. In such cases, a system designed for theft deterrence becomes a remote surveillance device. The privacy harm does not arise solely from intended use, but from foreseeable technical vulnerabilities inherent in poorly secured IoT architectures.

Because visual data captured at residential entrances may reveal identity, routines, and behavioural patterns, the consequences of compromise extend beyond inconvenience. A breach can expose delivery schedules, occupancy patterns, or identifiable imagery of residents and visitors. The more data retained and the longer it persists, the greater the impact of a security failure. Thus, cybersecurity design choices directly shape privacy risk.

Under the EGBC Code of Ethics, engineers must undertake work only within their competence and hold paramount the safety and welfare of the public. Designing networked sensing systems without robust encryption, secure authentication, and update integrity mechanisms constitutes a failure to exercise due care. Cybersecurity is not an optional enhancement but a core professional obligation when personal data is involved. SmartPost systems must therefore treat secure architecture, patch management, and threat modelling as foundational

requirements, recognizing that inadequate security transforms legitimate security features into unintended surveillance instruments.

VI. EGBC Code of Ethics Analysis

The ethical issues identified above—consent limitations, contextual privacy boundaries, excessive collection and retention, weak access governance, and cybersecurity vulnerabilities—engage core obligations under the EGBC Code of Ethics. Most directly, engineers must hold paramount the safety, health, and welfare of the public. Privacy, autonomy, and freedom from disproportionate surveillance fall within this welfare interest. When SmartPost systems are designed with capabilities that enable persistent monitoring, extended retention, or broad data access without proportionate safeguards, the resulting harms are foreseeable and therefore professionally relevant.

The Code further requires engineers to act with honesty and integrity and to present clearly the consequences of professional decisions. If system behaviour—such as background logging, vendor access pathways, or analytic processing—extends beyond what affected individuals reasonably expect, reliance on minimal disclosure fails this transparency obligation. Engineers must also undertake work only within the limits of their competence, which includes implementing secure architectures when handling personal data. Treating privacy compliance as a policy matter rather than a design constraint risks neglecting foreseeable misuse and breach scenarios.

Collectively, these principles establish that SmartPost-style systems cannot be evaluated solely as consumer security products; they are surveillance-capable technologies operating in semi-public space. The EGBC Code demands that engineers proactively constrain such capabilities through proportionate collection, enforced retention limits, strict access control, and secure system design. Privacy protection in this context is not an optional feature but a professional responsibility embedded in the duty to protect the public and uphold the integrity of the engineering profession.

VII. Case Studies

SmartPost-style systems place networked sensing in shared or semi-public space, often combining cameras, app-based access, and vendor analytics. The main privacy risk is not only that data is collected, but that automation and secondary use can convert convenience and security features into behavioural surveillance, biometric profiling, or location intelligence. Canadian privacy regulators have treated these outcomes as engineering and governance failures that require privacy-by-design controls, not just notices or policies. Across the cases below, three principles recur: derived biometric artefacts can be sensitive personal information, consent does not always legitimize an inappropriate purpose, and accountability must be engineered through PIAs, auditability, and vendor controls.

Case 1: Cadillac Fairview (PIPEDA Findings #2020-004, 2020) [1]

Cadillac Fairview deployed mall directory kiosks using camera-based "Anonymous Video Analytics" to capture faces, generate biometric numerical representations, and infer age-range and gender for analytics. Regulators found the collection and use involved sensitive biometric information without valid, meaningful consent, and that data retention was not controlled end-to-end. Despite representations that numerical representations were not retained, the investigation identified large-scale storage of facial representations on a decommissioned server and retained recordings. Regulators recommended express opt-in consent at the point of interaction, a genuine refusal option, and deletion of facial arrays collected without valid consent. Engineering lessons for SmartPost-style systems: treat templates and embeddings as biometrics, avoid biometric processing by default, and design verifiable retention and deletion controls that include vendors, backups, and system retirement workflows.

Case 2: Clearview AI (PIPEDA Findings #2021-001, 2021) [2], [4]

Clearview built a facial recognition service by scraping publicly accessible images, creating biometric arrays, and offering identity matching. Regulators rejected the argument that public availability of images implied lawful reuse for facial recognition and characterized the practice as mass identification and surveillance. The key finding was that the purpose was inappropriate and could not be made appropriate through consent. Regulators recommended the company cease offering the service in Canada and delete Canadians' images and biometric arrays; provincial regulators later issued binding orders in their jurisdictions, while the federal OPC noted limits under PIPEDA. Engineering lessons: treat identity matching capability as a category change in risk, require a defensible and narrowly scoped purpose before building, constrain data acquisition and provenance by design, and implement strict access controls and audit logs for any identification or search capability to reduce misuse and surveillance creep.

Case 3: Tim Hortons App (PIPEDA Findings #2022-001, 2022) [3]

Regulators found the Tim Hortons app collected granular location data at high frequency, including in the background, while user-facing prompts and explanations suggested more limited collection. The investigation focused on the lack of legitimate need, disproportionality, invalid consent due to misleading representations, and weak governance of third-party processing in an SDK

ecosystem. Remedies included deletion of remaining location data and derived data, deletion confirmation from third parties, and establishing a privacy management program with PIAs at key decision points. Engineering lessons for SmartPost-style systems: apply least-privilege telemetry, ensure product claims match actual behaviour across platforms, gate high-risk sensing and analytics changes through PIAs, and treat third-party SDKs and processors as part of the threat model and compliance boundary with technical controls and evidence-based deletion.

Availability-note on EGBC discipline cases [5]

A targeted scan of Engineers and Geoscientists BC discipline materials did not identify published discipline orders explicitly focused on privacy-invasive surveillance technologies such as facial recognition, location tracking, or automated monitoring. Accordingly, no EGBC discipline case is included in this section.

VIII. Comparative analysis and cross-case recommendations

Together, these cases show a consistent regulator view: surveillance risk often arises from system defaults and vendor ecosystems, and the gap between user expectations and actual collection. Cadillac Fairview demonstrates that camera analytics can still be biometric processing and that hidden retention paths persist beyond system retirement. Clearview clarifies that large-scale identification can be inappropriate even with attempted consent, making purpose limitation a hard gate rather than a documentation step. Tim Hortons shows how continuous background collection and misleading interfaces undermine consent and trigger proportionality scrutiny. For SmartPost-style systems, the engineering implication is to treat surveillance capability as safety-critical: minimize collection by default, avoid identity features unless strictly justified, and design retention, deletion, and access controls that are verifiable.

Recommended controls that generalize across the three cases include: (1) collect-on-demand and short, enforced retention windows; (2) capability containment, where identification and re-identification features are disabled by design unless approved through formal governance; (3) in-context consent when required, with a real refusal path and behaviour that matches the UI; (4) immutable audit logs for access and disclosure; and (5) vendor and SDK governance through both contracts and technical enforcement, including deletion verification and periodic compliance evidence.

POSSIBLE SOLUTIONS & COMMON GROUNDS

The ethical risks associated with SmartPost systems arise primarily from design choices rather than the purpose of secure package delivery. Accordingly, ethical deployment does not require eliminating sensing or recording capabilities but constraining them through privacy-by-design engineering, proportional governance, and economically sustainable safeguards that uphold public welfare while preserving functional security benefits. Consistent with the EGBC Code of Ethics, engineers must prioritize the safety, health, and welfare of the public by ensuring that technological solutions mitigate foreseeable harms while remaining transparent, proportionate, and purpose limited. The SmartPost system therefore adopts a design philosophy in which surveillance capability is minimized by default, user control is emphasized, and technical safeguards enforce ethical intent rather than relying solely on policy statements.

I. Technical Controls

SmartPost systems can reduce privacy risks through engineering decisions that limit unnecessary data exposure while maintaining delivery security functionality. Video analysis should occur primarily on-device, allowing delivery detection and event classification without continuous transmission to external servers. Cloud data transfer should occur only under user-initiated requests or explicitly configured settings, such as saving video segments surrounding verified delivery events detected through sensor fusion (e.g., locker access combined with weight detection). This event-based architecture ensures that recording serves the intended delivery purpose rather than enabling continuous environmental monitoring. Data stored locally or transmitted to cloud storage must be protected through end-to-end encryption, including encryption in transit, encrypted storage at rest, and hardware-secured key management to ensure only authorized users may access recorded material. Automatic deletion policies should be technically enforced, with recordings removed after a predefined retention window unless intentionally preserved by the user, accompanied by clear warnings when retention periods are extended beyond recommended defaults. Rather than implementing computationally intensive continuous privacy masking, SmartPost systems prioritize purpose limitation by recording continuously but saving only delivery-related events, thereby reducing unnecessary capture of public activity while maintaining system reliability. Secure authentication mechanisms, signed firmware updates, and audit logging further mitigate cybersecurity risks identified in the previous section, recognizing that compromised IoT devices can transform safety tools into unintended surveillance platforms. Together, these measures embed privacy protections directly into system architecture, aligning engineering functionality with ethical responsibility.

II. Policies and Governance

Technical safeguards must be supported by governance practices that recognize all affected stakeholders, including residents, delivery personnel, and passersby. Transparent privacy policies should clearly describe when recording occurs, what data is retained, and who can access it, ensuring that consent extends beyond device owners to individuals who interact with the system in shared or semi-public spaces. Where facial detection or identification features are employed, default configurations should present blurred imagery to users, with unblurred data remaining inaccessible except under legitimate legal or dispute-resolution processes. This approach preserves evidentiary value while reducing opportunities for misuse or harassment. Privacy Impact Assessments (PIAs) should be integrated into the engineering lifecycle at initial design, major firmware revisions, and feature expansions, ensuring ethical risks are evaluated alongside technical performance. Furthermore, SmartPost systems should prohibit manufacturer access to user recordings and reject secondary monetization of personal data. Cloud storage services may provide secure hosting and user convenience, but access control must remain exclusively user-managed, reinforcing the principle that product value derives from secure delivery functionality rather than data exploitation.

III. Reducing Surveillance Creep

A critical ethical concern for networked sensing technologies is surveillance creep, defined as the gradual expansion of monitoring capabilities beyond the system's original justified purpose. SmartPost systems address this risk through explicit purpose limitation and user-controlled constraints. Recording and storage functions are tied directly to delivery verification events, preventing continuous archival monitoring of surrounding public spaces. User-configurable recording parameters allow flexibility while maintaining privacy-protective defaults, ensuring that expanded monitoring requires deliberate and informed action rather than passive acceptance. Features such as facial recognition or extended monitoring capabilities must be treated as planned design considerations subject to ethical review rather than automatic upgrades. Engineers retain professional responsibility to challenge feature requests that introduce disproportionate surveillance risk without demonstrable public benefit, consistent with EGBC obligations to protect societal welfare. By embedding ethical guardrails into both hardware capabilities and software configuration pathways, SmartPost systems maintain alignment between intended function and actual operational impact.

IV. Short-Term and Long-Term Impacts

The proposed technical and governance safeguards introduce both immediate and long-term impacts that must be evaluated as part of responsible engineering practice. In the short term, SmartPost systems provide measurable benefits through reduced package theft, improved delivery verification, and increased accessibility for residents who rely on secure unattended deliveries, including elderly or mobility-limited individuals. Event-based recording and user-controlled data retention reduce unnecessary surveillance exposure while maintaining evidentiary functionality, though these protections may introduce modest increases in device complexity and development cost compared to unrestricted cloud-based monitoring systems. Delivery personnel may initially experience uncertainty regarding recording practices; however, transparent policies and purpose-limited data capture help mitigate chilling effects by clearly defining when and why recording occurs. Over the long term, privacy-by-design implementation contributes to broader societal trust in smart residential infrastructure by preventing normalization of continuous surveillance within shared or semi-public environments. By constraining sensing capabilities to delivery-related events and embedding safeguards against surveillance creep, SmartPost systems demonstrate how emerging IoT technologies can evolve without eroding reasonable expectations of privacy. These impacts illustrate the engineering balance required by the EGBC Code of Ethics: technological innovation must deliver practical public benefits while proactively limiting foreseeable social harms, ensuring that convenience and security improvements do not unintentionally reshape public spaces into persistent monitoring environments.

V. Common Ground Between Ethics and Economics

Ethical safeguards within SmartPost systems also support long-term economic sustainability, demonstrating that privacy protection and commercial viability are not opposing objectives. Data minimization and automatic deletion reduce storage and infrastructure costs, while strong encryption and restricted access lower organizational liability and regulatory exposure. Transparent privacy practices foster consumer trust, which is essential for adoption of residential security technologies operating in shared environments. By prioritizing secure delivery services, accessory ecosystems, and optional user-controlled cloud upgrades as primary revenue sources, SmartPost avoids dependence on third-party data monetization that could undermine public confidence. Ethical engineering decisions therefore function not as constraints on innovation but as mechanisms for sustainable deployment, enabling technological benefits, such as reduced package theft, improved delivery reliability, and increased accessibility for vulnerable populations, while preserving societal trust. In this way, SmartPost demonstrates a practical balance between economic incentives and professional ethical obligations, reinforcing that responsible engineering

design can simultaneously advance public welfare and technological progress.

DISCUSSION

I. Integrated Findings from Ethical Issues and Privacy-by-Design Controls

Synthesizing the risks with the mitigations proposed in previous sections, the central result is that SmartPost-style lockers are best understood as surveillance-capable systems operating in semi-public space, not just consumer security devices. Across the five issue areas (consent/notice, privacy expectations, minimization/retention, access governance, and cybersecurity), three root drivers repeatedly produce the highest risk: (1) non-meaningful consent for people who cannot realistically refuse being recorded (notably delivery personnel and visitors), (2) surveillance creep where functionality expands from delivery verification into broader monitoring/analytics, and (3) accountability gaps created by vendor ecosystems, retention pathways, and weak access controls. The Canadian case studies reinforce these patterns: Cadillac Fairview shows how "analytics" can become biometric processing with hidden retention, Clearview AI shows that certain identification purposes can be inappropriate even if "consent" is attempted, and Tim Hortons illustrates how background collection and third-party processing undermine meaningful consent and proportionality. The strongest conclusion from combining the previous two sections is that privacy protection must be engineered into defaults (purpose limitation, minimization, retention enforcement, and auditability), because policy-only safeguards are too easy to bypass once surveillance capability exists.

II. Overall State of Privacy Protection in SmartPost-Style Systems

In practical terms, privacy protection in smart-camera IoT products tends to be policy-heavy and architecture-light: users may see settings and disclosures, but the underlying system often remains capable of continuous capture, long retention, and broad sharing. Because these lockers sit at the boundary of private and semi-public space, the ethical burden is higher than for purely private indoor cameras—especially when bystanders have limited awareness and limited choice. The result is a recurring mismatch between what people reasonably expect in a residential entry context and what networked recording/metadata can reconstruct over time.

III. EGBC Code of Ethics Clauses Most at Risk

Based on the findings above, the EGBC duties most directly engaged (and at risk if not addressed) are:

Clause 1 (public safety, health, and welfare): privacy harms and breach-enabled harms (misuse of recordings, intimidation, stalking risk, chilling effects) are foreseeable welfare impacts in surveillance-capable systems.

Clause 3 (regard for applicable enactments): privacy law compliance affects what collection, retention, disclosure, and consent practices are defensible; designs that default to disproportionate collection make compliant operation unlikely.

Clause 5 (maintain competence): camera + cloud systems require current competence in cybersecurity and privacy engineering; weak authentication, poor encryption, and insecure updates are predictable failure modes.

Clause 10 (present consequences if judgment is overruled): engineers must clearly warn clients/employers about the consequences of always-on recording, long retention, or analytics/identification features.

Clause 12 (due diligence and documentation): PIAs, threat models, retention rules, access policies, and audit logging must be specified and verifiable, not implied.

Clause 13 (fairness, courtesy, good faith): fairness is central for stakeholders with the least control (delivery workers/visitors) who may be recorded as a condition of performing work or accessing a residence.

IV. Most Effective Mitigation Strategies

The most effective mitigations are those that reduce capability by default and increase accountability by design: event-based capture (store delivery-relevant clips rather than continuous archives), short enforced retention windows with verifiable deletion, encryption in transit and at rest, strong authentication and signed updates, role-based access control, and tamper-resistant audit logging. Governance controls (PIAs at design and major feature changes, vendor/SDK restrictions, and clear disclosure that matches actual behaviour) are essential because they prevent surveillance creep from being introduced through "feature updates" without ethical review.

V. Implications for Engineering Practice

For engineers, the key implication is that surveillance capability should be treated as welfare-relevant. That means starting with a narrow purpose, designing minimization and retention as core requirements, threat-modeling misuse and breach scenarios, and documenting decisions so they are auditable. Engineers should also treat the vendor ecosystem as part of the system boundary: if third parties can access or retain data, those pathways must be controlled technically and governed explicitly. Finally, engineers have a professional responsibility to push back on disproportionate feature requests and to document the consequences when professional judgment is overruled.

VI. Limitations and Future Work

This report is limited by reliance on publicly available regulator findings rather than direct testing of specific

SmartPost deployments, and by variation across real products and strata/apartment configurations. Future work could include empirical studies on delivery-worker expectations and impacts, technical evaluation of event-based recording accuracy versus privacy masking, and deeper analysis of governance models for shared residential spaces where opt-out is least realistic.

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